
Issues and Complaints About Vendors

Policy: State and local WIC agencies must document and handle complaints about vendors.

Regulation: 7 CFR 246.9, 7 CFR 246.8, 7 CFR 246.12

Procedure/Additional Guidance:

Complaints From Participants: Educator to LARC

Participants should be encouraged to discuss their experiences at the store with their WIC Educator. The educator should assist the participant to determine if the issue can be identified, such as attempting to purchase items with WIC that are not approved and provide additional nutrition education as appropriate. If a store issue or complaint is identified, comments from participants should be relayed to the Local Agency Retailer Coordinator (LARC).

LARC to Store

LARC are encouraged to contact a store representative to discuss and resolve problems. The information gathered in discussion with the vendor and the vendor's proposed resolution to the problems should be documented as appropriate in the Compass Vendor Log. Maintain documentation such as completed reports, receipts, rain checks, etc. A clinic must have complete files if the vendor appeals.

Participant information is confidential. Neither the participant name nor a copy of the report should be provided to the vendor. The State WIC Benefit Delivery Unit (BDU) is available to provide guidance to LARC to resolve problems and discuss complaints.

For any complaint alleging discrimination based on race, color, national origin, sex, age, or disability, procedures are detailed in the Program Manual, Section 11: Civil Rights.

Violations: Ongoing or More Serious Vendor Problems to State WIC Office

The BDU will contact vendors regarding general authorization processes such as pricing, renewal and state wide training. The BDU will also be responsible for resolving ongoing problems at a specific vendor. Complaints that are serious or ongoing about a specific vendor should be reported to the BDU for follow-up. The State Office is responsible for sending violation letters to vendors and assigning violation points to vendors. A LARC may send a violation letter to a vendor only after the State WIC Office has received copies of the pertinent documentation and has reviewed and approved violation correspondence. With any correspondence related to the assignment of sanction points, the vendor should be provided with the appeals procedures.

Copies of email and other communications along with any other available documents such as receipts or rain checks, should be maintained in the Local Agency store file and/or kept electronically; copies should be sent (preferably via email) to the BDU. After discussion with the LARC, the BDU will conduct appropriate follow-up. This follow-up may include communication with the store management, compliance activity, contact with the chain headquarters of the store, tracking violation points and activities in Compass and/or a violation letter detailing corrective action.

The State WIC Office will typically forward copies of violation letters to the headquarters office of chain stores. Along with the notification of the violation, the vendor will receive notification of their right to appeal.